

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-18

**Access One Transport, Inc., Complainant
v.
CMA CGM S.A., Respondent**

JOINT MOTION FOR APPROVAL OF SETTLEMENT AND ORDER OF DISMISSAL

Complainant, Access One Transport, Inc. (“Access One”) and Respondent, CMA CGM S.A. (“CMA”), by its undersigned attorneys, pursuant to 46 C.F.R. § 502.5(b) and 502.72(a)(3), submit this joint motion in support of the Parties’ Confidential Settlement Agreement filed under seal concurrently herewith and to make an order dismissing the above captioned case with prejudice. The Parties believe that the Confidential Settlement Agreement meets the criteria set by the Federal Maritime Commission (“FMC” or “Commission”) for the approval of settlement agreements and therefore should be approved.

1. Access One filed a verified complaint with the Commission on April 23, 2024, alleging that CMA violated certain provisions of the Shipping Act of 1984, as amended, 46 U.S.C. § 40101, *et. seq.* and requested that CMA be required to answer the charges, and that the Commission provide legal and equitable relief. CMA was served with the complaint on April 26, 2024.
2. CMA did answer the charges on May 21, 2024, denying the substance of Access One’s allegations and asserting certain affirmative defenses. Thereafter, the parties engaged in informal document exchanges and discovery without dispute. The Parties have engaged in settlement

discussions at various points in time throughout the course of the proceeding, ultimately concluding the Confidential Settlement Agreement accompanying this memorandum.

A. THE CONFIDENTIAL SETTLEMENT AGREEMENT SHOULD BE APPROVED

1. "The Commission has a strong and consistent policy of 'encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.'" *Aeneas Exporting LLC v. Carlo Shipping Intl, Inc.*, Docket No. 2011, 2020 FMC LEXIS 189, at *2, 2020 WL 5942148, at *2 (Fed. Mar. Comm'n Aug. 24, 2020) (Wirth, C.J.) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002)). "[I]f it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, Docket Nos. 88-2, 88-4, 1988 FMC LEXIS 25, at *19, 24 S.R.R. 1129, 1134 (All Aug. 12, 1988)). "Reaching a settlement allows the parties to settle their differences, without an admission of a violation of law by the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation." *Mac Indus., Inc. d/b/a Mac Container Line v. COSCO Shipping Lines Co., Ltd.*, Docket No. 20-09, 2020 FMC LEXIS 181, at *3, 2020 WL 4464298, at *2 (Fed. Mar. Comm'n July 29, 2020) (Wirth, C.J.) (quoting *APM Terminals N Am., Inc. v. Port Auth. of N.Y. and N.J.*, 31 S.R.R. 623, 626 (FMC 2009)).

2. Evaluating this motion to approve the Confidential Settlement Agreement entails examining whether it "reflects careful consideration by the parties of a variety of factors,

including the relative strengths of their positions weighed against the risks and costs of continued litigation." *APM Terminals N Am., Inc.*, 31 S.R.R. at 636 (quoting *Delhi Petroleum Pty. Ltd.*, 24 S.R.R. at 1134). The primary factor to consider, however, is the FMC's "strong and consistent policy of encouraging settlements . . ." *APM Terminals N. Am., Inc.*, 31 S.R.R. at 625 (quoting *Inlet Fish Producers, Inc.*, 29 S.R.R. at 978).

3. Through independent analysis, the Parties, both sophisticated corporate entities represented by experienced counsel, determined that a settlement was economically expedient and legally justified. They entered into a confidential mutual release settlement agreement to ensure that the dispute is entirely resolved. The settlement was reached through negotiations based on their independent analysis. Accordingly, the parties certify that the settlement is on the merits.

4. The federal regulations require that dismissals by order of the presiding officer must be on terms the presiding officer considers proper. The settlement agreement must be submitted with the motion for determination as to whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable. 46 C.F.R. § 502.72(a)(3).

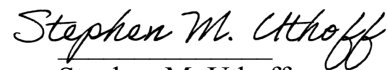
5. This settlement is consistent with all applicable laws and public policies. It reflects the parties' mutual desire to resolve their differences without the costs and risks of continued litigation. The settlement is both fair and reasonable in light of the evidence. Therefore, it is neither unjust nor discriminatory, and does not negatively impact any third parties or the shipping public.

6. The parties request that the settlement remain confidential. The Commission has recognized that settlement agreements often contain sensitive commercial information, and thus should be protected from public disclosure and routinely grants appropriate requests for

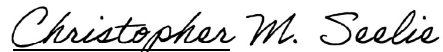
confidential treatment. *See D.F. Young, Inc. v. NYKLine (North America) Inc.*, FMC Dkt No. 16-02 (FMC May 22, 2018). “If parties wish to keep the terms of their settlement agreements confidential, the Commission, as well as the courts, have honored such requests.” *Al Kogan v. World Express Shipping, Transportation and Forwarding Services, Inc.*, 29 S.R.R. 68, 70 n.7 (ALJ 2000) (internal citations omitted).

7. The Parties having determined that it is in their best interest to settle, and request that the Commission approve the settlement agreement and grant it confidential treatment, and upon approval for dismissal of this matter.

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on November 22, 2024, the foregoing Joint Motion for Approval of Settlement and Order of Dismissal has been served upon all interested persons and parties by electronic means pursuant to the below list.

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Presiding Administrative Law Judge

Erin M. Wirth, Chief Administrative Law Judge

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**CONFIDENTIAL SETTLEMENT AGREEMENT
EXCLUDED**